DEEPCHAT

TERMS OF SERVICE AND PRIVACY POLICY

Effective Date: November 2, 2026 | Last Updated: November 2, 2026

IMPORTANT LEGAL NOTICE TO ALL USERS

PLEASE READ THESE TERMS OF SERVICE AND PRIVACY POLICY CAREFULLY BEFORE USING DEEPCHAT. By accessing or using the DeepChat artificial intelligence platform and its workspace tools (collectively, the "Service"), you agree to be legally bound by these Terms of Service and Privacy Policy (the "Terms"). If you do not agree to every provision of these Terms, you must immediately discontinue all access to and use of the Service.

1. FREE SUBSIDIZED PLATFORM AND SERVICE INSTABILITY: DeepChat is provided to users free of charge ($0.00 USD) and is supported entirely through a voluntary platform subsidy. Because the Service operates without paid subscriptions or commercial enterprise revenue, the platform is inherently unstable and carries zero uptime guarantees (Zero-SLA). The Service may experience high latency, rate limits, capacity queues, dropped connections, or unannounced temporary or permanent shutdown at any moment when subsidy allocations are exhausted.

2. LOCAL-ONLY STORAGE AND ZERO SERVER DATA COLLECTION: DeepChat does not collect, read, harvest, or store your conversations, prompts, uploaded files, or memories on central servers. All chat histories, files, personas, and settings are saved exclusively inside your own web browser (via IndexedDB and LocalStorage) on your local device. Because we do not keep copies of your data, clearing your browser data or losing your device will permanently delete your conversations, and we cannot recover them.

3. COMPLETE USER RESPONSIBILITY: You bear sole legal, operational, and financial responsibility for all prompts you submit, all files you upload, all code you run in the workspace, and all ways in which you rely upon or distribute outputs generated by the Service.

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1. Acceptance of Terms and Eligibility

1.1 Binding Legal Agreement

These Terms of Service and Privacy Policy (“Terms”) constitute a binding legal contract between you (“User,” “you,” or “your”) and the operators of the DeepChat platform (“DeepChat,” “we,” “us,” or “our”). These Terms govern all access to and use of the DeepChat web application, including its conversational artificial intelligence models, live audio and visual interaction modes, image generation tools, document and spreadsheet analysis features, code execution environment, web search capabilities, and memory management tools (collectively, the “Service”).

1.2 Age and Legal Capacity Requirements

You must be at least eighteen (18) years of age, or the legal age of majority in your jurisdiction of residence, to access and use the Service independently. Individuals between the ages of thirteen (13) and eighteen (18) may use the Service only under the direct supervision and with the express consent of a parent or court-appointed legal guardian who agrees to be bound by these Terms and assumes full responsibility for the minor’s activity. Children under the age of thirteen (13) are strictly prohibited from accessing or using the Service for any purpose. If you access the Service on behalf of a company, institution, or legal entity, you warrant that you hold full legal authority to bind that entity to these Terms.

1.3 Amendments to These Terms

We reserve the right to update, modify, or replace any part of these Terms at our sole discretion at any time. When revisions are made, we will update the “Last Updated” date at the top of this document. Your continued use of the Service after any modification takes effect constitutes your binding acceptance of the revised Terms.

2. Subsidized Platform and Service Instability

2.1 Free Access Funded by Voluntary Subsidy

DeepChat is made available to the public free of charge. You pay no subscription fee, license charge, or per-message tariff to use the Service. All computational inference, model routing, image synthesis, and platform hosting expenses are funded through a finite, voluntary subsidy budget provided by DeepChat and its sponsors. You acknowledge that your access to the Service is a gratis privilege supported by voluntary subsidy and does not create any commercial customer relationship, fiduciary duty, or guaranteed right of continued access.

2.2 Inherent Instability and Zero Uptime Guarantee (Zero-SLA)

Because DeepChat operates on finite subsidized compute budgets and shared model capacity without commercial revenue, the Service is inherently unstable and is provided strictly without any Service Level Agreement (Zero-SLA). DeepChat does not promise, warrant, or guarantee that the Service or any specific artificial intelligence model will be available, responsive, or reliable at any given time. By using the Service, you expressly understand and accept that you will encounter frequent, unscheduled operational disruptions, including:

- Immediate rate-limiting errors (HTTP 429) and hourly or daily token quota exhaustion when platform traffic exceeds available subsidized capacity;
- Interrupted, stalled, or prematurely terminated streaming responses during chat generation or live voice and video sessions;
- High response latency, request queuing, gateway timeouts (HTTP 502 and HTTP 504), or unannounced automatic routing to smaller or faster models during peak demand;
- Sudden removal, deprecation, or replacement of specific artificial intelligence models, image generators, or workspace features without prior notice; and
- Temporary suspension or permanent, complete shutdown of the DeepChat platform at any moment if subsidy funds are depleted.

2.3 Right to Throttle, Cap, or Discontinue the Service

To preserve platform availability and prevent rapid exhaustion of subsidy budgets, DeepChat reserves the absolute, unilateral right at any time and without prior notice to cap context window lengths, limit daily message counts, restrict file upload sizes, disable high-cost tools (such as image generation, live streaming, or code execution), block specific IP ranges, or discontinue the Service entirely. DeepChat shall have zero liability to you or any third party for any delay, throttling, suspension, or permanent discontinuation of the Service.

2.4 Prohibition on Mission-Critical Reliance

DeepChat is strictly prohibited from use in mission-critical, high-availability, time-sensitive, medical, emergency response, financial trading, industrial control, or commercial production operations. If you rely on DeepChat for business deadlines, commercial deliverables, or critical workflows, you do so in direct violation of these Terms and assume one hundred percent (100%) of the risk and financial loss resulting from service downtime or instability.

3. Local-First Privacy Policy (Zero Data Collection)

3.1 Zero Central Collection or Storage of User Content

DeepChat is built on a strict local-first privacy model. Unlike conventional artificial intelligence platforms that record user conversations in centralized cloud databases for analytics, advertising, or model training, DeepChat does not collect, harvest, read, store, index, or sell your personal data or workspace content. DeepChat does not maintain any central server database of your:

- Prompts, messages, conversation threads, or AI-generated responses;
- Uploaded documents, spreadsheets, images, or file attachments;
- Saved user memories, extracted conversation summaries, or custom persona instructions; or
- User profile names, avatars, interface settings, or workspace preferences.

3.2 Client-Side Browser Storage (IndexedDB and LocalStorage)

All persistent data created during your use of DeepChat is stored directly inside your own web browser on your local device using standard client-side storage technologies (IndexedDB and LocalStorage). Your chat history, pinned threads, message revisions, saved memories, uploaded files, and persona settings remain exclusively on your personal hardware under your direct physical and administrative control. DeepChat operators have zero remote access to your browser storage and cannot view, inspect, export, modify, or recover any data stored on your device.

3.3 Transient Processing of Active AI Requests

When you send a prompt, analyze an uploaded file, execute a web search, or request an image, your browser transmits the active request payload to the platform's stateless inference router solely to generate and stream the real-time response back to your screen. Active request payloads are processed transiently in volatile memory for the duration of the response stream and are discarded upon completion. DeepChat does not log your prompts to persistent server storage and never uses your conversations or uploaded files to train artificial intelligence models.

3.4 Optional Shared Chat Links

If you explicitly choose to generate a shared chat link for a specific conversation, a static snapshot of that selected thread is created so that recipients of the link can view it. Shared chat links are accessible to anyone who possesses the link URL. You must never include confidential, sensitive, or personally identifiable information in a conversation that you choose to share publicly, and you bear sole responsibility for all content contained in your shared links.

3.5 Data Controller Status under Privacy Laws (GDPR, CCPA, and UU PDP)

Because all persistent workspace records reside locally on your own device and DeepChat collects zero personal data on central servers, DeepChat is neither a "Data Controller" nor a "Data Processor" of your local browser storage under the European Union General Data Protection Regulation (GDPR), the California Consumer Privacy Act (CCPA), the Republic of Indonesia Law No. 27 of 2022 on Personal Data Protection (UU PDP), or analogous privacy statutes. You act as the sole data controller of your own device and browser storage. You may exercise complete control over your records at any time by using the DeepChat Settings menu to export your data to a local backup file or to permanently delete all local browser storage.

4. User Custody, Backups, and Data Loss

4.1 Complete User Custody and Device Security

Because your conversations, files, and memories are stored locally inside your web browser without server-side account synchronization, you are the sole custodian of your workspace. You are solely responsible for maintaining the physical security of your computer or mobile device, securing your operating system account, and ensuring that untrusted individuals or malicious browser extensions cannot access your local browser profile.

4.2 Irreversible Data Loss and User Duty to Backup

DeepChat maintains zero server-side backups of your conversations, memories, personas, or attachments. Consequently, your entire chat history and workspace state will be permanently and irreversibly erased if:

- You clear your web browser's site data, cookies, cache, or IndexedDB storage;
- You use DeepChat inside a private, incognito, or guest browser window that purges storage when closed;
- Your web browser automatically evicts local storage due to low disk space on your device; or
- Your computer or mobile device is lost, stolen, reformatted, or suffers a hardware or operating system failure.

DeepChat cannot recover, reconstruct, or restore any lost local data under any circumstances. You bear the sole obligation to regularly export and save external backups of your workspace using the data export feature in Settings.

4.3 Lawfulness of Submitted Prompts and Files

You represent and warrant that you own or possess all necessary legal rights, consents, and permissions to submit all text prompts, documents, spreadsheets, images, and code that you input into the Service, and that your inputs do not violate any privacy right, trade secret, copyright, confidentiality obligation, or applicable law.

5. AI Output Disclaimers and Hallucinations

5.1 Probabilistic Generation and Inaccuracy (Hallucinations)

Artificial intelligence models generate text, code, data analyses, audio, and images through probabilistic statistical prediction rather than verified factual lookup. As an inherent limitation of artificial intelligence technology, outputs generated by DeepChat frequently contain fabricated facts, invented citations, mathematical and formula errors, logical contradictions, outdated information, or defective and insecure source code (commonly referred to as "hallucinations"). DeepChat makes zero representations or warranties as to the truth, accuracy, completeness, safety, or reliability of any output. You are solely responsible for independently verifying every fact, citation, calculation, and line of code before relying upon it.

5.2 Prohibition on Medical, Legal, Financial, or Professional Advice

All outputs generated on DeepChat are provided strictly for general informational, educational, and creative assistance. Nothing produced by the Service constitutes licensed medical diagnosis, clinical treatment advice, legal counsel, certified public accounting, financial investment advice, or certified engineering design. You must never substitute AI-generated outputs for the judgment of a qualified professional, and you waive any claim against DeepChat arising from actions taken in reliance on AI outputs.

5.3 Non-Uniqueness and Third-Party Intellectual Property Risk

Because machine learning models generate responses algorithmically from patterns learned during training, an output generated for you may be similar or identical to outputs generated for other users, or may inadvertently resemble copyrighted text, visual art, trademarks, or software code owned by third parties. DeepChat does not warrant that any generated text, code, or image is free of third-party intellectual property claims. If you publish, distribute, or use any AI-generated output commercially, you do so entirely at your own legal risk.

6. Code Execution, Web Preview, and Tools

6.1 Code Runner and Interactive Web Preview Risks

DeepChat provides workspace tools for executing code snippets, performing spreadsheet and formula calculations, and rendering live HTML, CSS, SVG, and JavaScript previews. All code execution is subject to strict runtime timeouts and memory ceilings and may be terminated without notice. Code generated by artificial intelligence models may contain logic bugs, infinite loops, destructive commands, or security vulnerabilities. You bear sole responsibility for inspecting and auditing any generated code before executing it in the preview environment or deploying it into your own projects.

6.2 Web Search, URL Fetching, and External Tool Extensions

When you use web search, URL context fetching, or external tool extensions within DeepChat, the Service retrieves information from third-party websites and external services at your request. DeepChat does not control, verify, or endorse any third-party website or external tool. External web content may contain inaccurate statements, malicious scripts, or adversarial prompt injection text designed to manipulate model behavior, and you assume all risks associated with enabling external search or tool features.

7. Acceptable Use and Prohibited Conduct

You agree to use DeepChat responsibly and in compliance with all applicable laws. You are strictly prohibited from using the Service to generate, upload, execute, or distribute any content or activity that:

- Involves child sexual abuse material (CSAM), child sexual exploitation and abuse (CSAE), or non-consensual intimate imagery;
- Promotes, encourages, or provides instructions for suicide, self-harm, terrorism, violent extremism, or physical harm against any person;
- Assists in the design, synthesis, or acquisition of chemical, biological, radiological, or nuclear (CBRN) weapons or hazardous materials;
- Creates, compiles, or distributes malware, ransomware, trojans, spyware, exploit payloads, or denial-of-service attack tools;
- Conducts phishing, social engineering, financial fraud, identity theft, defamation, harassment, or unlawful surveillance; or
- Infringes upon any copyright, trademark, trade secret, patent, or personal privacy right of any third party.

8. Anti-Abuse and Subsidy Protection Rules

Because DeepChat is a free platform operating on a finite community subsidy, protecting our computational resources from automated abuse is essential. You are strictly prohibited from:

- Accessing the Service through automated bots, scrapers, headless browsers, or unauthorized scripts to harvest model completions in bulk;
- Reselling, sublicensing, packaging, or charging third parties for access to DeepChat or its subsidized model outputs;
- Attempting to bypass, disable, or circumvent rate limits, concurrency caps, IP restrictions, or execution timeouts; or
- Using DeepChat's code runner or workspace tools for cryptocurrency mining, network scanning, proxy relaying, or resource exhaustion attacks.

9. Intellectual Property and Content Rights

9.1 Your Inputs and Outputs

As between you and DeepChat, and to the maximum extent permitted by applicable law, you retain all ownership rights in the prompts, documents, and files you submit to the Service, and DeepChat assigns to you all right, title, and interest (if any) in the outputs generated in response to your prompts. Because your conversations are stored locally in your own browser and not on our servers, DeepChat claims zero ownership or license over your private chat history.

9.2 DeepChat Platform Property

DeepChat retains all right, title, and interest in and to the DeepChat name, brand, logos, user interface design, and platform service architecture. Nothing in these Terms grants you any right to use DeepChat's trade names, trademarks, or branding without prior written authorization.

10. Service Suspension and Termination

You may discontinue your use of DeepChat at any time and may delete all locally stored data by clearing your browser's site data or using the clear storage function in Settings. DeepChat reserves the right, in its sole discretion and without prior notice or liability, to throttle, block, suspend, or permanently terminate your access to the Service at any time for any reason, including suspected violation of Sections 7 or 8 or depletion of platform subsidy funds.

11. Disclaimer of Warranties (As-Is Basis)

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE DEEPCHAT SERVICE, ALL SUBSIDIZED ARTIFICIAL INTELLIGENCE MODELS, ALL GENERATED OUTPUTS, AND ALL WORKSPACE TOOLS ARE PROVIDED STRICTLY ON AN "AS IS," "WITH ALL FAULTS," AND "AS AVAILABLE" BASIS. DEEPCHAT, ITS OPERATORS, AND ITS SUBSIDY SPONSORS EXPRESSLY DISCLAIM ALL WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, INCLUDING WITHOUT LIMITATION ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, NON-INFRINGEMENT, ACCURACY, RELIABILITY, AND QUIET ENJOYMENT.

DEEPCHAT DOES NOT WARRANT THAT: (A) THE SERVICE WILL MEET YOUR REQUIREMENTS; (B) THE SERVICE WILL BE UNINTERRUPTED, TIMELY, STABLE, SECURE, OR FREE OF RATE LIMITS OR OUTAGES; (C) ANY AI-GENERATED TEXT, CODE, IMAGE, OR DATA ANALYSIS WILL BE ACCURATE, COMPLETE, OR SAFE; OR (D) LOCAL BROWSER STORAGE WILL BE FREE FROM DATA LOSS OR CORRUPTION. YOU USE THE SERVICE ENTIRELY AT YOUR OWN RISK.

12. Limitation of Liability ($0.00 USD Cap)

12.1 Exclusion of Indirect and Consequential Damages

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL DEEPCHAT, ITS OPERATORS, AFFILIATES, OR SUBSIDY SPONSORS BE LIABLE TO YOU OR ANY THIRD PARTY FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES WHATSOEVER, INCLUDING WITHOUT LIMITATION DAMAGES FOR LOSS OF PROFITS, LOSS OF REVENUE, LOSS OF BUSINESS, LOSS OF GOODWILL, PERMANENT LOSS OF LOCAL BROWSER DATA, SERVICE DOWNTIME, OR RELIANCE ON AI-GENERATED OUTPUTS, ARISING OUT OF OR RELATING TO THESE TERMS OR YOUR USE OF OR INABILITY TO USE THE SERVICE, UNDER ANY THEORY OF LIABILITY (WHETHER IN CONTRACT, TORT, NEGLIGENCE, STRICT LIABILITY, OR OTHERWISE), EVEN IF DEEPCHAT HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

12.2 Absolute Cap on Liability ($0.00 USD)

BECAUSE DEEPCHAT IS PROVIDED FREE OF CHARGE AS A VOLUNTARILY SUBSIDIZED SERVICE, TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE TOTAL CUMULATIVE LIABILITY OF DEEPCHAT, ITS OPERATORS, AND ITS SPONSORS TO YOU FOR ALL CLAIMS ARISING OUT OF OR RELATING TO THESE TERMS OR THE SERVICE SHALL NOT EXCEED ZERO UNITED STATES DOLLARS ($0.00 USD), OR, SOLELY WHERE APPLICABLE LAW FORBIDS A ZERO-DOLLAR LIABILITY LIMITATION FOR GRATIS SERVICES, ONE UNITED STATES DOLLAR ($1.00 USD).

13. User Indemnification Obligations

You agree to defend, indemnify, and hold harmless DeepChat, its operators, and its subsidy sponsors from and against any and all third-party claims, demands, lawsuits, regulatory investigations, fines, penalties, damages, liabilities, losses, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to: (a) your access to or use of the Service; (b) any prompts, files, documents, or code you submit, execute, or share through the Service; (c) your reliance upon, publication of, or commercial use of any AI-generated output; or (d) your breach of these Terms or violation of any applicable law or third-party right.

14. Governing Law and Dispute Resolution

14.1 Governing Law

These Terms and any dispute or claim arising out of or relating to them or the Service shall be governed by and construed in accordance with the laws of the Republic of Indonesia (including Law No. 27 of 2022 on Personal Data Protection and Law No. 11 of 2008 on Electronic Information and Transactions as amended), without regard to conflict of law principles.

14.2 Informal Negotiation and Binding Arbitration

Before initiating any formal legal action, you agree to attempt to resolve any dispute informally in good faith for a period of sixty (60) days after written notice. If the dispute remains unresolved after sixty (60) days, it shall be resolved exclusively through final and binding individual arbitration, except that DeepChat may seek injunctive relief in any court of competent jurisdiction to stop unauthorized abuse of platform resources.

14.3 Class Action Waiver

TO THE FULLEST EXTENT PERMITTED BY LAW, ALL CLAIMS MUST BE BROUGHT SOLELY IN AN INDIVIDUAL CAPACITY, AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS, COLLECTIVE, CONSOLIDATED, OR REPRESENTATIVE PROCEEDING.

15. General Legal Provisions

15.1 Force Majeure

DeepChat shall not be liable for any delay, interruption, or failure in performance resulting from causes beyond its reasonable control, including upstream AI model outages, cloud infrastructure failures, internet backbone disruptions, cyberattacks, power outages, natural disasters, or governmental actions.

15.2 Severability, No Waiver, and Entire Agreement

If any provision of these Terms is held to be invalid or unenforceable, that provision shall be enforced to the maximum extent permissible and the remaining provisions shall remain in full force and effect. Any failure by DeepChat to enforce a provision of these Terms shall not constitute a waiver of that right. These Terms constitute the entire agreement between you and DeepChat regarding the Service and supersede all prior understandings.

16. Data Storage and Risk Allocation Schedules

Schedule A. Local-First Data Storage and Privacy Summary

The table below summarizes where your data resides and how privacy is protected on DeepChat:

Data Category	Storage Location	Data Stored	Custody & Retention
Chat History	Browser IndexedDB	Prompts, AI replies, message versions, and pinned chats	100% Local on User Device; zero server storage
User Memories	Browser IndexedDB	Saved memory notes, conversation context, and personas	100% Local on User Device; deletable in Settings
Uploaded Files	Browser IndexedDB	Documents, spreadsheets, and images attached to chats	100% Local on User Device; never stored on server
UI Preferences	Browser LocalStorage	Theme mode, language setting, and layout preferences	100% Local on User Device; cleared with site data
Active Prompts	Transient Stream	Current message context sent to generate live response	Discarded in memory once response stream ends

Schedule B. Subsidized Service and Risk Allocation Summary

The table below summarizes the service terms and allocation of responsibility between DeepChat and the User:

Service Aspect	Platform Policy	Operational Reality	Allocation of Risk
Platform Pricing	Free ($0.00 USD)	Funded entirely through voluntary platform subsidy	Zero commercial warranty; $0.00 USD liability cap
Service Uptime	Zero-SLA (Unstable)	Subject to rate limits, capacity queues, and outages	100% User risk; prohibited for critical workflows
AI Model Outputs	Probabilistic Output	Models may hallucinate facts, citations, or code	100% User duty to verify before any reliance
Data Backups	No Server Backups	Clearing browser data erases all chats permanently	100% User duty to export local backups
Code & Previews	Sandboxed Preview	Generated code may contain bugs or unsafe logic	100% User duty to review code before use

16.1 User Acknowledgment

By accessing or using the DeepChat platform, you acknowledge that you have read and understood these Terms of Service and Privacy Policy, including the local-only storage architecture and the unstable, subsidized nature of the Service, and agree to be bound by all terms herein.